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TEMPORARY ENVIRONMENTAL CONTROLS

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1 (2024) Safety and Occupational Health
(SOH) Requirements

WETLANDS DELINEATION MANUAL (1987) Corps of Engineers Wetlands
Delineation Manual

U.S. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)

33 CFR 328 Definitions of Waters of the United States

40 CFR 279 Standards for the Management of Used Oil

40 CFR 302 Designation, Reportable Quantities, and
Notification

40 CFR 355 Emergency Planning and Notification

40 CFR 68 Chemical Accident Prevention Provisions

33 CFR 156 Navigation and Navigable Waters, Oil and
Hazardous Material Transfer Operations

1.2 DEFINITIONS

1.2.1 Environmental Pollution and Damage

Environmental pollution and damage is the presence of chemical, physical, or biological elements or agents which adversely affect human health or welfare; unfavorably alter ecological balances of importance to human life; affect other species of importance to humankind; or degrade the environment aesthetically, culturally and/or historically.

1.2.2 Environmental Protection

Environmental protection is the prevention/control of pollution and habitat disruption that may occur to the environment during construction. The control of environmental pollution and damage requires consideration of land, water, and air; biological and cultural resources; and includes management of visual aesthetics; noise; solid, chemical, gaseous, and liquid waste; radiant energy and radioactive material as well as other pollutants.

1.2.3 Contractor Generated Hazardous Waste

Contractor generated hazardous waste means materials that, if abandoned or disposed of, may meet the definition of a hazardous waste. These waste streams would typically consist of material brought on site by the Contractor to execute work, but are not fully consumed during the course of construction. Examples include, but are not limited to, excess paint thinners (i.e. methyl ethyl ketone, toluene etc.), waste thinners, excess paints, excess solvents, waste solvents, and excess pesticides, and contaminated pesticide equipment rinse water.

1.2.4 Waters of the United States

All waters which are under the jurisdiction of the Clean Water Act, as defined in [33 CFR 328](#).

1.2.5 Wetlands

Those areas that are inundated or saturated by surface or ground water at a frequency and duration sufficient to support, and that under normal circumstances do support, a prevalence of vegetation typically adapted for life in saturated soil conditions. Wetlands generally include swamps, marshes, and bogs. Official determination of whether or not an area is classified as a wetland shall be done in accordance with [WETLANDS DELINEATION MANUAL](#).

1.3 GENERAL REQUIREMENTS

Minimize environmental pollution and damage that may occur as the result of construction operations. The environmental resources within the project boundaries and those affected outside the limits of permanent work shall be protected during the entire duration of this contract. Comply with all applicable environmental Federal, State, and local laws and regulations. Any delays resulting from failure to comply with environmental laws and regulations will be the Contractor's responsibility.

1.4 SUBCONTRACTORS

Ensure compliance with this section by subcontractors.

1.5 PAYMENT

No separate payment will be made for work covered under this section. Payment of fees associated with environmental permits, application, and/or notices obtained by the Contractor, and payment of all fines/fees for violation or non-compliance with Federal, State, Regional and local laws and regulations are the Contractor's responsibility. All costs associated with this section shall be included in the contract price.

1.6 SUBMITTALS

Government approval is required for submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. Submit the following in accordance with Section [01 33 00 SUBMITTAL PROCEDURES](#):

[SD-01 Preconstruction Submittals](#)

Environmental Protection Plan; G, DO

1.7 ENVIRONMENTAL PROTECTION PLAN

Prior to commencing construction activities or delivery of materials to the site, submit an Environmental Protection Plan for review and approval by the Contracting Officer. The purpose of the Environmental Protection Plan is to present a comprehensive overview of known or potential environmental issues which the Contractor shall address during construction. Issues of concern shall be defined within the Environmental Protection Plan as outlined in this section. Address each topic at a level of detail commensurate with the environmental issue and required construction task(s). Topics or issues which are not identified in this section, but are considered necessary, shall be identified and discussed after those items formally identified in this section. Prior to submittal of the Environmental Protection Plan, meet with the Contracting Officer for the purpose of discussing the implementation of the initial Environmental Protection Plan; possible subsequent additions and revisions to the plan including any reporting requirements; and methods for administration of the Contractor's Environmental Plans. The Environmental Protection Plan shall be current and maintained onsite by the Contractor.

1.7.1 Compliance

No requirement in this Section will relieve the Contractor of any applicable Federal, State, and local environmental protection laws and regulations. During construction, the Contractor will be responsible for identifying, implementing, and submitting for approval any additional requirements to be included in the Environmental Protection Plan.

1.7.2 Contents

Include in the environmental protection plan, but not limit it to, the following:

- a. Name(s) of person(s) within the Contractor's organization who is(are) responsible for ensuring adherence to the Environmental Protection Plan.
- b. Name(s) and qualifications of person(s) responsible for manifesting hazardous waste to be removed from the site, if applicable.
- c. Name(s) and qualifications of person(s) responsible for training the Contractor's environmental protection personnel.
- d. Description of the Contractor's environmental protection personnel training program.
- e. Drawings showing locations of proposed temporary material storage areas, structures, sanitary facilities, and stockpiles of excess or spoil materials including methods to contain materials on the site.
- f. Spill control plan with procedures, instructions, and reports to be used in the event of an unforeseen spill of a substance regulated by 40 CFR 68, 40 CFR 302, 40 CFR 355, and/or regulated under State or Local laws and regulations. The Spill Control Plan supplements the requirements of EM 385-1-1. Include in this plan, as a minimum:

- (1) The name of the individual who will report any spills or hazardous substance releases and who will follow up with complete

documentation. This individual will immediately notify the Contracting Officer and Facility Environmental Office in addition to the legally required Federal, State, and local reporting channels (including the National Response Center 1-800-424-8802) if a reportable quantity is released to the environment. Include in the plan a list of the required reporting channels and telephone numbers.

- (2) The name and qualifications of the individual who will be responsible for implementing and supervising the containment and cleanup.
 - (3) Training requirements for Contractor's personnel and methods of accomplishing the training.
 - (4) A list of materials and equipment to be immediately available at the job site, tailored to cleanup work of the potential hazard(s) identified.
 - (5) The names and locations of suppliers of containment materials and locations of additional fuel oil recovery, cleanup, restoration, and material-placement equipment available in case of an unforeseen spill emergency.
 - (6) The methods and procedures to be used for expeditious contaminant cleanup.
- g. In conjunction with the Spill Control Plan the Contractor shall incorporate in its accident prevention program, submitted in compliance with the Contract Clause: "ACCIDENT PREVENTION," sufficient information to demonstrate compliance with 33 CFR 156 and any other applicable laws, codes, and regulations pertaining to handling of fuel oil.
- h. A non-hazardous solid waste disposal plan identifying methods and locations for solid waste disposal including debris collected during dredging operations. The Contractor shall identify any subcontractors responsible for the transportation and disposal of solid waste. Licenses or permits shall be submitted for solid waste disposal sites that are not a commercial operating facility. Evidence of the disposal facility's acceptance of the solid waste shall be attached to this plan during the construction.
- i. An air pollution control plan detailing provisions to assure that dust, debris, materials, trash, etc., do not become air borne and travel off the project site.
- j. A contaminant prevention plan that identifies potentially hazardous substances to be used on the job site; identifies the intended actions to prevent introduction of such materials into the air, water, or ground; and details provisions for compliance with Federal, State, and local laws and regulations for storage and handling of these materials. In accordance with 40 CFR 385-1-1, a copy of the Material Safety Data Sheets (MSDS) and the maximum quantity of each hazardous material to be onsite at any given time shall be included in the contaminant prevention plan. Update the plan as new hazardous materials are brought onsite or removed from the site.
- k. Environmental Monitoring. The Contractor shall include in the plan the details of environmental monitoring requirements under the applicable

laws, regulations and permits, as specified in these specifications, and a description of how this monitoring will be accomplished.

1. Protection of Wildlife Resources. The Contractor shall prepare and submit a "Marine Mammal Protection Plan" as part of the Environmental Protection Plan. The plan shall include specific details regarding protection of wildlife resources during the work. The Contractor shall also comply with all aspects of the requirements specified below under subparagraph "Special Environmental Requirements".

1.7.3 Appendix

Attach to the Environmental Protection Plan, as an appendix, copies of all environmental permits, permit application packages, approvals to construct, notifications, certifications, reports, and termination documents.

1.8 PROTECTION FEATURES

This paragraph supplements the Contract Clause PROTECTION OF EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES, AND IMPROVEMENTS. Prior to start of any onsite construction activities, the Contractor and the Contracting Officer will make a joint condition survey. Immediately following the survey, the Contractor will prepare a brief report including a plan describing the features requiring protection under the provisions of the Contract Clauses, which are not specifically identified on the drawings as environmental features requiring protection along with the condition of trees, shrubs and grassed areas immediately adjacent to the site of work and adjacent to the Contractor's assigned storage area and access route(s), as applicable. This survey report will be signed by both the Contractor and the Contracting Officer upon mutual agreement as to its accuracy and completeness. The Contractor shall protect those environmental features included in the survey report and any indicated on the drawings, regardless of interference which their preservation may cause to the work under the contract.

1.9 SPECIAL ENVIRONMENTAL REQUIREMENTS

1.9.1 Environmental Dredge Window

To protect marine resources and protected species, dredging and disposal operations will only be permitted as specified in Section 01 11 00 SUMMARY OF WORK, Subpart PERIOD OF PERFORMANCE, ENVIRONMENTAL WINDOW AND DREDGING AND DISPOSAL PERIOD.

1.9.2 Operational Requirements and Responsibilities Necessary for Environmental Compliance

The following conditions shall be met by the Contractor.

1. Year-round, disposal vessels including tugs, barges, and scows transiting between the dredge site and the disposal site shall operate at speeds not to exceed 10 knots. For unanticipated conditions, a vessel may operate at a speed necessary to maintain safe maneuvering speed instead of the required 10 knots. This alternative speed is justified only when the vessel is in an area where oceanographic, hydrographic and/or meteorological conditions severely restrict the maneuverability of the vessel and the need to operate at such speed is confirmed by the vessel captain. If a deviation from the 10-knot speed limit is necessary, the reasons for the deviation, the speed at which

the vessel is operated, the latitude and longitude of the area, and the time and duration of such deviation shall be entered into the logbook of the vessel. The master of the vessel shall attest to the accuracy of the logbook entry by signing and dating it. The intent of this condition is to reduce the potential for vessel collisions with endangered turtles, fish, and whales.

3. The captain shall:

a. Lookout for turtles and whales and be aware of turtle or whale sightings.

b. Avoid transit and disposal when visibility is lessened (e.g., at night, fog) to an extent that would preclude spotting a whale within 1,500 feet or a sea turtle within 600 feet. Disposal shall not be permitted if these requirements cannot be met due to weather or sea conditions. In that regard, the permittee and contractor should be aware of predicted conditions before departing for the disposal site. The intent of this condition is to reduce the potential for vessel collisions with endangered species, including right whales.

c. Ensure that the disposal vessel adheres to the enclosed NMFS regulations for approaching right whales, 50 CFR 224.103(c), which restrict approaches within 1,500 feet (500 yards) of a right whale and specify avoidance measures for vessels that encounter right whales.

e. Ensure that dredged material is not released if whales are within 1,500 feet or turtles are within 600 feet of the specified disposal point. If whales or turtles are within these distances and appear to be moving away from the specified disposal point, within these distances and appear to be remaining stationary, or outside these distances but appear to be moving towards the specified disposal point, the vessel captain shall wait until they have cleared the specified disposal point by these distances and are not moving towards it, and then proceed with disposal at the specified disposal point.

c. Avoid harassment of or direct impact to turtles and whales except when precluded by safety considerations.

f. Report any interactions (i.e., vessel strikes, captures, etc.) with any ESA-listed species as soon as possible (within 24-hours) to the NMFS Marine Animal Response Hotline at (866)-755-NOAA or USCG via CH-16 and immediately report any injured or dead marine mammals or sea turtles to NMFS at (866)-755-NOAA.

1.10 ENVIRONMENTAL ASSESSMENT OF CONTRACT DEVIATIONS

Any deviations from the drawings and specifications, requested by the Contractor and which may have an environmental impact, will be subject to approval by the Contracting Officer and may require an extended review, processing, and approval time. The Contracting Officer reserves the right to disapprove alternate methods, even if they are more cost effective, if the Contracting Officer determines that the proposed alternate method will have an adverse environmental impact.

1.11 NOTIFICATION

The Contracting Officer will notify the Contractor in writing of any observed noncompliance with Federal, State or local environmental laws or regulations, permits, and other elements of the Contractor's Environmental Protection plan. After receipt of such notice, the Contractor will inform the Contracting Officer of the proposed corrective action and take such action when approved by the Contracting Officer. The Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action has been taken. No time extensions will be granted or equitable adjustments allowed for any such suspensions. This is in addition to any other actions the Contracting Officer may take under the contract, or in accordance with the Federal Acquisition Regulation or Federal Law.

PART 2 PRODUCTS

Not Used

PART 3 EXECUTION

3.1 ENVIRONMENTAL PERMITS AND COMMITMENTS

This Article supplements the Contractor's responsibility under the contract clause PERMITS AND RESPONSIBILITIES to the extent that the Government has received a Water Quality Certification (WQC) and Coastal Zone Consistency Concurrence (CZM). The Contractor shall comply with permit terms and conditions that are applicable to this contract. Such applicable terms and conditions have been extracted from the permit and are specified in the various sections of these specifications and on the contract drawings. The above referenced documents shall not be relied on for contract requirements. In the event a discrepancy is discovered between the reference documents and these specifications or the contract drawings, the Contractor shall notify the Contracting Officer for clarification. The Contracting Officer will rely on contract documents, permit requirements and conditions to resolve perceived conflicts. Copies of the WQC and CZM are attached at the end of this specification for reference only. Note that these documents were developed for a combined maintenance dredging and improvement dredging contract and not all items pertain to maintenance dredging activities. Pertinent maintenance dredging portions of the WQC have been incorporated into the requirements of this specifications package.

3.2 WATER RESOURCES

The Contractor shall monitor construction activities to prevent pollution of surface and ground waters. All water areas affected by construction activities shall be monitored by the Contractor.

3.3 AIR RESOURCES

Equipment operation, activities, or processes performed by the Contractor shall be in accordance with all Federal and State air emission and performance laws and standards.

3.3.1 Particulates

The Contractor shall maintain work areas within or outside the project boundaries free from particulates which would cause the Federal, State, and

local air pollution standards to be exceeded or which would cause a hazard or a nuisance. The Contractor shall comply with all State and local visibility regulations.

3.3.2 Odors

Odors from construction activities shall be controlled at all times. The odors shall not cause a health hazard and shall be in compliance with the State of Connecticut regulations and/or local ordinances.

3.3.3 Sound Intrusions

The Contractor shall keep construction activities under surveillance and control to minimize environment damage by noise. The Contractor shall comply with the provisions of the State of COnnecticut and/or local ordinances.

3.4 CHEMICAL MATERIALS MANAGEMENT AND WASTE DISPOSAL

3.4.1 Solid Wastes

Solid wastes shall be placed in containers which are emptied on a regular schedule. Handling, storage, and disposal shall be conducted to prevent contamination. Segregation measures shall be employed so that no hazardous or toxic waste will become co-mingled with solid waste. The Contractor shall transport solid waste off Government property and dispose of it in compliance with Federal, State, and local requirements for solid waste disposal. The Contractor shall verify that the selected transporters and disposal facilities have the necessary permits and licenses to operate. The Contractor shall comply with Federal, State, and local laws and regulations pertaining to the use of landfill areas.

3.4.2 Fuel and Lubricants

Storage, fueling and lubrication of equipment and motor vehicles shall be conducted in a manner that affords the maximum protection against spill and evaporation. Fuel, lubricants and oil shall be managed and stored in accordance with all Federal, State, Regional, and local laws and regulations. Used lubricants and used oil to be discarded shall be stored in marked corrosion-resistant containers and recycled or disposed in accordance with 40 CFR 279, State, and local laws and regulations. Storage of fuel on the project site shall be in accordance with all Federal, State, and local laws and regulations.

3.5 HISTORICAL, ARCHAEOLOGICAL, AND CULTURAL RESOURCES

If, during excavation or other construction activities, any previously unidentified or unanticipated historical, archaeological, and cultural resources are discovered or found, all activities that may damage or alter such resources shall be temporarily suspended. Resources covered by this paragraph include but are not limited to: any human skeletal remains or burials; artifacts; shell, midden, bone, charcoal, or other deposits; rock alignments, pavings, wall, or other constructed features; and any indication of agricultural or other human activities. Upon such discovery or find, the Contractor shall immediately notify the Contracting Officer so that the appropriate authorities may be notified and a determination made as to their significance and what, if any, special disposition of the finds should be made. The Contractor shall cease all activities that may result in impact to or the destruction of these resources. The Contractor shall

secure the area and prevent employees or other persons from trespassing on, removing, or otherwise disturbing such resources.

3.6 BIOLOGICAL RESOURCES

The Contractor shall minimize interference with, disturbance to, and damage to fish, sea turtles, marine mammals, and other aquatic wildlife, and plants including their habitat. The Contractor shall be responsible for the protection of threatened and endangered animal and plant species including their habitat in accordance with Federal, State and local laws and regulations.

3.7 PREVIOUSLY USED EQUIPMENT

The Contractor shall clean all previously used construction equipment prior to bringing it onto the project site. The Contractor shall ensure that the equipment is free from soil residuals, egg deposits, plant pests, noxious weeds, and plant seeds. The Contractor shall consult with the USDA jurisdictional office for additional cleaning requirements.

3.8 MAINTENANCE OF POLLUTION FACILITIES

The Contractor shall maintain permanent and temporary pollution control facilities and devices for the duration of the contract or for that length of time construction activities create the particular pollutant.

3.9 TRAINING OF CONTRACTOR PERSONNEL

The Contractor's personnel shall be trained in all phases of environmental protection and pollution control. The Contractor shall conduct environmental protection/pollution control meetings for all Contractor personnel prior to commencing construction activities. Additional meetings shall be conducted for new personnel and when site conditions change. The training and meeting agenda shall include: methods of detecting and avoiding pollution; familiarization with statutory and contractual pollution standards; installation and care of devices, vegetative covers, and instruments required for monitoring purposes to ensure adequate and continuous environmental protection/pollution control; anticipated hazardous or toxic chemicals or wastes, and other regulated contaminants; recognition and protection of archaeological sites, artifacts, wetlands, and endangered species and their habitat that are known to be in the area.

3.10 POST CONSTRUCTION CLEANUP

The Contractor shall clean up all areas used for construction in accordance with Contract Clause: "Cleaning Up". The Contractor shall, unless otherwise instructed in writing by the Contracting Officer, obliterate all signs of temporary construction facilities such as, work area, structures, foundations of temporary structures, stockpiles of excess or waste materials, and other vestiges of construction prior to final acceptance of the work. The disturbed area shall be graded, filled and the entire area seeded unless otherwise indicated.

-- End of Section --